

Mahendra Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 15 July 2024 · 2024:AHC-LKO:47835-DB · WRIT - C No. 6056 of 2024 · **Relegated to clause 6.14; recovery in abeyance for six weeks**

HEADNOTE

A consumer who admits electricity dues and seeks instalments because of poor financial condition is to be directed to the Executive Engineer under paragraph 6.14 of the Electricity Supply Code. The writ was disposed of with a direction to apply within three days and for an appropriate order within six weeks. Recovery under the impugned notice remains in abeyance for that period only if the application is made in time.

FACTUAL SUMMARY

Mahendra Pratap Singh filed a writ petition before the Allahabad High Court, Lucknow Bench, to quash a notice of the Tehsildar, Sadar, Sitapur, requiring him to deposit electricity dues of Rs. 1,42,572 within fifteen days of receipt or to appear before the Tehsildar. He admitted the dues. He sought to pay them in instalments because of his poor financial condition. Counsel for the Power Corporation drew attention to paragraph 6.14 of the Electricity Supply Code, under which an application lies to the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalments on admitted dues

HOLDING

Where the consumer admits the electricity dues and seeks to pay them in instalments because of poor financial condition, the writ against the recovery notice is disposed of by directing him to apply to the Executive Engineer under paragraph 6.14 of the Electricity Supply Code within three days. If the application is made, the Executive Engineer shall consider the grievance and pass an appropriate order within six weeks. The impugned recovery stays in abeyance for those six weeks, subject to that order, and only if opposite party no. 2 is approached within three days. ¶ 1-2

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress The petitioner pleaded poor financial condition as the reason for seeking instalments. The Court did not itself grant instalments. It directed a paragraph 6.14 application to the Executive Engineer within three days and an appropriate order within six weeks. ¶ 1-2

clause-6.14-instalments-on-accepted-dues The petitioner admitted the electricity dues of Rs. 1,42,572. The Court treated paragraph 6.14 as the route for seeking instalments of those accepted dues and did not examine the demand. ¶ 1-2

installment-payment-clause-6.14 On the Power Corporation's reference to paragraph 6.14, the Court disposed of the writ by sending the instalment request to the Executive Engineer under that paragraph, with recovery kept in abeyance for six weeks if the approach was made within three days. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS ARE TO BE GRANTED, AND ON WHAT TERMS

Left to the Executive Engineer to pass an appropriate order on the paragraph 6.14 application. ¶ 1-2

